

of land to trustees for open public grounds, for recreation of adults or playgrounds for children.]

7. **Erection of buildings.**—The Act of 31 & 32 Vict. c. 44, exempts from the mortmain act all dispositions of land (except by will) made after the passing of the Act (13th July, 1868), to trustees of any society associated together for *religious* purposes, or for the promotion of *education, arts, literature, science*, or other like purposes, for *the erection on such land of buildings* for such purposes, or any of them.

8. **Parks, schools, and museums.**—And the Act of 34 Vict. c. 13, exempts from the statutes of mortmain all gifts of land by *deed or will* for the purposes of a *public park*, a *school house* for an elementary school, or a *public museum*, and all bequests of personalty for the like purposes; but gifts by will, and voluntary grants, must be made twelve months before the death of the testator or grantor, and must be inrolled within six calendar months after the time when the same shall come into operation, and the gift must not exceed twenty acres for a park, or two acres for a museum, or one acre for a school.

9. **Perpetuities.**—A *perpetuity* will no more be tolerated under cover of a trust, than when it displays itself undisguised in a settlement of the legal estate (a).¹ “If in

(a) See Duke of Norfolk's case, 3 Ch. Ca. 20, 28, 35, 48.

¹ *Perpetuities.*—The same law applies to equitable as to legal estates; Schettler v. Smith, 41 N. Y. 329; Burrill v. Boardman, 43 N. Y. 254; Knox v. Jones, 47 N. Y. 397; Sears v. Putnam, 102 Mass. 5; Lovering v. Worthington, 106 Mass. 86; Barnett's App. 46 Pa. St. 392; 86 Am. Dec. 502. A trust which cannot vest in the time allowed by law is void; Sears v. Russell, 8 Gray, 86. A testator cannot direct an estate to be limited beyond that time, and persons taking, must be capable of taking directly; Barnum v. Barnum, 26 Md. 119; Fonda v. Penfield, 56 Barb. 503. But not so as to changing trustees; Clark v. Platt, 30 Conn. 282. A trust for a charitable object is not subject to the rule of perpetuities; Miller v. Chittenden, 2 Ia. 362; Gass v. Wilhite, 2 Dana, 183; Yard's App. 64 Pa. St. 95; Griffin v. Graham, 1 Hawks. 131; Beekman v. Bonsor, 23 N. Y. 308; Bascom v. Albertson, 34 N. Y. 598. If the contingency attaching to a remainder of an equitable estate may happen, the property is held in abeyance, and then either vests or fails; Newark Church v. Clark, 41 Mich. 730; Hardenburgh v. Blair, 30 N. J. Eq. 42. A direction for accumulation during minority, the income to go to the minor for life, and at his death the principal to others is void; see N. Y. Rev. St. 2180 *et. seq.* § 3. A devise to son, in case he can be found after diligent inquiry, correspondence, and publication for the space of twenty years, is not void for